

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

WAY 2 GO CARGO CORP.,
Complainant,

v.

DOCKET NO. 25-14

OAK WAY CARGO, LLC,
Respondent.

RESPONSE IN OPPOSITION TO RESPONDENT’S MOTION TO COMPEL

Complainant, Way 2 Go Cargo Corp. through undersigned counsel, responds in opposition to Respondent Oak Way Cargo, LLC’s Motion to Compel Discovery, Compel Continued Deposition of the Corporate Representative of Way 2 Go Cargo Corp. and Extend Case Deadlines served on June 23, 2026 (“Motion”), and in support thereof, states as follows:

I. The Commission should disregard the Respondent’s mischaracterization of its attempt to confer with Complainant’s counsel.

1. Complainant objects to multiple characterizations of Respondent’s counsel’s purported conversations with undersigned counsel regarding discovery in this matter.

2. Specifically with respect to the representations made in the “Certificate of Conferral,” Mot. p. 13, undersigned counsel wholly denies the assertion that “Claimant does not oppose an order compelling it to provide better answers to Respondents First set of Interrogatories but Claimant does oppose the other relief sought by this Motion.”

3. Complainant was not afforded the opportunity to meaningfully confer on this Motion, as counsel for Respondent first contacted Complainant regarding the relief requested by sending a copy of the Motion to Complainant’s undersigned counsel via email on June 23, 2026, at 3:13 p.m.

4. On a brief phone call between counsel for the parties that same afternoon, the undersigned informed Respondent's counsel offered to be available for a call the following day to confer after having had an opportunity to review the 13-page motion and understand what was being requested. After being pressed by Respondent's counsel to discuss the requested relief, undersigned counsel generally agreed that Complainant would amend its interrogatory responses and provide any additional documents that had recently come into Complainant's possession¹ and make Way 2 Go's corporate representative available for additional deposition at some point before the July 10th deadline for the close of discovery.

5. The Motion was then filed on the same day at 5:35 p.m. At no point in the 2 hours and 22 minutes after the initial conferral email to Complainant's counsel and the filing of the Motion did the undersigned represent that Complainant agrees that it should be subject to an "order compelling it to provide" anything. Mot. p. 13.

II. Respondent's request for extension of deadlines is untimely.

6. The ALJ's Order Granting Fourth Joint Motion to Extend Scheduling Order Deadlines served on June 1 set the following case schedule:

June 19, 2026	Complete Fact Discovery
June 26, 2026	Disclosure-Initial Expert Reports
July 3, 2026	Disclosure-Rebuttal Expert Reports
July 10, 2026	Complete Expert Depositions
July 10, 2026	Close of Discovery and Completion of Depositions (if any)
August 7, 2026	Complainant's Brief, Proposed Findings of Fact, and Appendix
September 4, 2026	Respondent's Opposition Brief, Response to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix
September 25, 2026	Complainant's Reply Brief and Responses to Proposed Findings of Fact

¹ In a civil proceeding pending before a tribunal in Rio de Janeiro, Brazil, Oak Way Cargo, LLC's principal, Raphael Alves, was ordered to turn over access to Way 2 Go Cargo's ShipThis account and email server to Way 2 Go Cargo and its counsel in Brazil. Complainant is in the process of recovering the electronically stored information that and determining the responsiveness and relevance of such information, if any, to the discovery requests in this proceeding.

7. As stated in the Motion, Complainant anticipated to have documents available to supplement its production on or around June 17, 2026. However no firm commitment was made, because the availability of the documents depended in part on Oak Way Cargo LLC's principal, Raphael Alves's compliance with an order entered by the tribunal presiding over a separate civil lawsuit in Rio de Janeiro, Brazil to turn over access to the ShipThis account and email server that had been improperly withheld from Complainant until now.

8. Respondent's first attempt to confer on the extension of the June 19 fact discovery completion deadline was on June 23, only after the expiration of the deadline.

9. Nevertheless, despite not having had an opportunity to meaningfully confer on the relief requested in this Motion, Complainant attempted in good faith to avoid the need for motion practice by offering to supplement its discovery responses and even making its representative available for deposition before the final discovery deadline, on July 10. Complainant made this offer in an effort to resolve the pending discovery without the need for yet another prolonged extension of the case schedule.

III. Respondent is not entitled to an order compelling Complainant to supplement its discovery to provide "damages information."

10. Way2Go's Complaint filed on July 25, 2025, seeks the award of reparations including, but not limited to, compensatory damages resulting from the Respondent's violations of 46 U.S.C. § 40901(a).

11. As stated in Complainant's interrogatory answers generally, Respondent's improper withholding of information has prevented Complainant's ability to determine the total value of the injury resulting from Respondent's violations.

12. As an example, Respondent produced key financial records responsive to

Complainant's discovery requests for the first time on the morning of the third day of the deposition Respondent's representative. Specifically, undersigned received an email at 9:26 a.m. on June 12th including a spreadsheet containing information identifying payments for freight-forwarding services, fees, and charges that Respondent collected for shipments that were initiated by the Complainant. This information was provided just 4 minutes before the deposition was scheduled to begin, at 9:30 a.m.

13. Complainant is still waiting on a copy of the transcript of that final day of Respondent's representative's deposition, which included testimony confirming the amounts of payments Respondent diverted from Complainant by taking over shipments Complainant initiated and providing freight-forwarding services to Complainant's clients.

14. Therefore, to the extent Respondent argues it "has been deprived of the opportunity to obtain any advance notice of the damages," and believes it is entitled to the same, it has no one to blame but itself. Both for the unjustified delay in providing its own discovery responses and for waiting until June 23 to extend the fact discovery deadline.

15. Respondent forfeited the opportunity to depose Complainant's representative on certain issues related to Complainant's reparations when it produced responsive financial information after already having deposed Complainant's representative.

16. While Respondent is not entitled to an extension of the current case schedule based on the assertion that Complainant should be ordered to supplement its discovery responses or produce its representative for an additional deposition, Respondent acknowledges that a revised case schedule is appropriate in light of Complainant's intent to supplement, for a final time, its interrogatory answers and discovery production by July 15, 2026.

17. Moreover, Complainant does not object to Respondent's need for an extension

based on its counsel's pre-planned vacation. If the ALJ is inclined to grant an extension, Complainant proposes the following schedule, which extends the deadlines by only one month, instead of the two requested by Respondent:

July 22, 2026	Complete Fact Discovery
July 29, 2026	Disclosure-Initial Expert Reports
August 5, 2026	Disclosure-Rebuttal Expert Reports
August 12, 2026	Complete Expert Depositions
August 12, 2026	Close of Discovery and Completion of Depositions (if any)
September 8, 2026	Complainant's Brief, Proposed Findings of Fact, and Appendix
October 5, 2026	Respondent's Opposition Brief, Response to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix
October 23, 2026	Complainant's Reply Brief and Responses to Proposed Findings of Fact

WHEREFORE, the Complainant, Way 2 Go Cargo Corp. respectfully requests the Commission deny Respondent Oak Way Cargo, LLC's request for an order compelling Way 2 Go Cargo Corp. to supplement and amend its discovery responses and make its representative available for a supplemental deposition. Complainant further requests that to the extent an extension is granted, the case above suggested schedule be adopted.

Dated: June 30, 2026.

Respectfully submitted,

EPGD Attorneys at Law, P.A.
Attorney for Complainant
777 SW 37th Ave., Ste. 510
Miami, FL 33135
T: (786) 837-6787
F: (305) 718-0687
jennifer@epgdlaw.com
mgomez@epgdlaw.com

BY: /s/ Jennifer S. Roldan
Jennifer Santos Roldan, Esq.
Florida Bar No.: 1003369

CERTIFICATE OF SERVICE

I **HEREBY CERTIFY** that a true and correct copy of the foregoing was filed via electronic mail upon the Office of the Secretary at secretary at secretary@fmc.gov and served upon all counsel of record for OAK WAY CARGO, LLC at ron@hink.legal on this 30th day of June 2026.

BY: /s/ Jennifer S. Roldan
Jennifer Santos Roldan, Esq.